

24NWCV03518 24NWCV03518

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SILBESTRE N. TAIZAN v. URBANO VASQUEZ, ET AL.

CASE NO.: 24NWCV03518

HEARING: 09/11/2026 @

9:30 AM

#8

TENTATIVE ORDER

I.

Defendant Urbano Armando Vasquez's motion
to compel responses to special interrogatories, set one is GRANTED.

II.

Defendant Urbano Armando Vasquez's motion
to compel responses to demand for inspection and production of documents, set
one is GRANTED.

III.

Defendant's request for monetary
sanctions is GRANTED in the amount of \$675.51 against Plaintiff and his counsel
of record.

Moving party to give notice.

Defendant The Estate of Urbano Armando Vasquez (Defendant)

moves to compel Plaintiff Silbestre Navarette Taizan (Plaintiff) to provide responses to (1) specially prepared interrogatories (SROGs), set one and (2) demand for inspection and production of documents (RPDs), set one.

Background

On October 7, 2024, Plaintiff filed a form complaint against Defendant Urbano Armando Vasquez and Does 1 to 50, inclusive. This action arises out of a motor vehicle collision on November 2, 2023 at or near Washington Blvd and Paramount Blvd in Pico Rivera, CA 90660 resulting in injuries to Plaintiff. The complaint asserts two causes of action: (1) motor vehicle and (2) general negligence.

On September 5, 2025, Defendant's motions to compel responses to form interrogatories, set one; special interrogatories, set one; and demand for inspection and production of documents, set one were called for hearing. At the hearing, counsel for Defendant took the motions off calendar. (Order, 9/5/25.)

On October 24, 2025, the Court granted Defendant's motion to compel Plaintiff's responses to special interrogatories, set two.

On April 13, 2026, the Court dismissed Defendant Urbano Armando Vasquez and ordered that the case will proceed against The Estate of Urbano Armando Vasquez pursuant to a stipulation filed by the parties on January 29, 2026.

Legal Standard

Interrogatories

A party to whom interrogatories are propounded must respond within 30 days of service of the interrogatories. (Code Civ. Proc., § 2030.260.) If a party fails to serve a timely response, the party propounding interrogatories may move for an order compelling responses. (Code Civ. Proc., § 2030.290.) Additionally, "the party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product." (Code Civ. Proc., § 2030.290.)

Requests for Production

Under Code of Civil Procedure section 2031.260 subdivision

(a), a party must respond to requests for production of documents within 30 days of service. Failure to do so waives all objections including privilege or on the protection of work product. (See Code Civ. Proc., § 2031.300, subd. (a).)

Discussion

Defendant moves to compel Plaintiff to provide responses

SROGs, set one and RPDs, set one. These motions are unopposed.

On June 17, 2026, Defendant propounded SROGs, set one and RPDs, set one on Plaintiff. (Babadjanian Decls., ¶ 2.) After not receiving any responses, Defendant granted Plaintiff an extension to July 31, 2026. (Babadjanian Decls., ¶ 3.) As of the date of these motions, Defendant has not received Plaintiff's responses to the subject discovery requests. (Babadjanian Decls., ¶ 4.)

The Court notes that Defendant has already moved to compel responses to sets one of its RPDs and SROGs. Upon review of the SROGs, the current set one of SROGs asks different requests than the prior SROGs motion, which the Court heard and granted on October 24, 2025. As to the RPDs, the motion was taken off calendar and was not heard.

Defendant therefore establishes that he properly served Plaintiff with the discovery requests and Plaintiff failed to serve timely responses.

Accordingly, Defendant's motion to compel Plaintiff Silbestre Navarette Taizan to provide responses SROGs, set one, and RPDs, set one is GRANTED.

Plaintiff Silbestre Navarette Taizan is ORDERED to provide verified responses without objections to special interrogatories, set one and requests for production, set one within 20 days of this Order. This deadline may be changed pursuant to agreement by the parties.

Sanctions

Defendant moves for monetary sanctions against Plaintiff and his counsel of record for failure to provide discovery responses pursuant to Code of Civil Procedure section 2030.290, subdivision (c) and 2031.300, subdivision (c).

Pursuant to Code of Civil Procedure, section 2030.290 subdivision (c) and 2031.300, subdivision (c), "[t]he court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories [or a demand for inspection], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust."

The Court finds sanctions warranted against Plaintiff and his counsel of record for failing to provide responses without substantial justification. Defendant requests \$455.34 for each motion. This amount reflects "2 hour(s) of attorneys' fees to meet and confer, review the motion and declaration, and appear at the subject motion hearing, at \$160.17 per hour; plus 1 hour(s) of legal assistant time to reserve the hearing and draft the motion, at \$75 per hour; plus one \$60 motion filing fee." (Babadjanian Decls., ¶ 5.) The Court finds this amount excessive given that 1 hour to reserve a hearing is unreasonable and 2 total hours for appearance at the hearings is excessive as the hearings will occur concurrently.

Defendant's request for monetary sanctions is GRANTED in the amount of \$675.51 against Plaintiff and his counsel of record. Plaintiff Silbestre Navarette Taizan and his counsel of record are ORDERED to pay this amount within 30 days of this Order.